

THE PLATFORM-BASED GIG WORKER WAGE PROTECTION CODE, 2026 (ILLUSTRATIVE)

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1. Applicability

1.1 This Code applies to any digital platform that engages 50 or more gig workers for delivery, ride-hailing, or home-service tasks within the State. 1.2 A worker who completes fewer than 8 tasks in a calendar month is classified as an occasional worker and is covered only by Sections 4 and 6 of this Code.

2. Minimum Payout Guarantee

2.1 A platform shall guarantee a minimum payout of Rs. 25 per completed task or the applicable per-hour minimum wage, whichever is higher. 2.2 Where a task is cancelled by the platform after a worker has travelled more than 1 km toward pickup, a cancellation fee of not less than Rs. 30 shall be paid to the worker.

3. Payment Timelines

3.1 Earnings for completed tasks shall be settled to the worker's registered account within 48 hours of task completion. 3.2 Any deduction disputed by a worker shall be resolved by the platform within 7 working days, failing which the disputed amount shall be paid in full pending resolution.

4. Working Hours and Rest

4.1 A platform shall not algorithmically assign tasks to a worker who has been active on the platform for more than 10 continuous hours without a break of at least 30 minutes. 4.2 Continuous active hours exceeding 12 in a single day shall trigger a mandatory 8-hour cooldown before further task assignment.

5. Grievance Redressal

5.1 Every platform shall establish a grievance cell that acknowledges a worker's complaint within 24 hours and resolves it within 15 working days. 5.2 A worker dissatisfied with the outcome may escalate to the State Gig Workers Welfare Board within 30 days of the platform's resolution.

6. Penalties

6.1 Failure to settle payments within the timeline under Section 3.1 shall attract a penalty of 2% of the delayed amount per week of delay, payable to the worker. 6.2 Repeated violation of Section 4 within a quarter shall attract a fine on the platform not exceeding Rs. 5,00,000 and may result in suspension of the platform's operating registration for up to 60 days.